

The Disinformation Dilemma

1. Introduction and Core Dilemma

The paper addresses a critical regulatory tension in the European digital ecosystem:

- **The DSA Mandate:** The Digital Services Act (DSA) obligates Very Large Online Platforms (VLOPs - platforms with >45 million users) to rigorously assess and mitigate systemic risks, including harmful disinformation.
- **The ECHR Protection:** Article 10 of the European Convention on Human Rights (ECHR) guarantees a high baseline of protection for political and satirical expression.
- **The "Satire Loophole":** In the modern social media landscape, malicious actors are increasingly merging disinformation with humor, memes, and AI-generated deepfakes. This creates a gray area where harmful disinformation is intentionally disguised as satire to exploit regulatory exclusions, while legitimate political satire risks being accidentally censored.

2. The DSA Risk Mitigation Framework

Under the current EU digital governance structure, disinformation is handled via a co-regulatory, risk-based approach:

- **The Exclusion of Satire:** Both the European Commission's communications and the *Strengthened Code of Practice on Disinformation* (formally integrated under the DSA as of July 2025) explicitly state that "disinformation" does not include satire and parody.
- **Intent vs. Effect:** The Code distinguishes *misinformation* (false information spread in good faith) from *disinformation* (false or misleading information spread with deceitful intent to cause public harm or political gain).
- **Systemic Risk Regime:** Under Articles 34 and 35 of the DSA, VLOPs are not judged on individual content pieces, but must manage systemic risks that have actual or foreseeable negative impacts on civic discourse, electoral processes, and fundamental rights.
- **The AI Act Overlay:** While transparency and labeling rules for generative AI/deepfakes fall under Article 50(4) of the AI Act (classified as "limited risk"), the downstream *societal risks* of these deepfakes remaining unmoderated or losing their labels during viral sharing fall squarely under the DSA risk assessment regime.

3. ECHR Baseline: ECtHR Jurisprudence on Satire

Because the European Court of Justice (ECJ) must regard ECHR fundamental rights as general principles of Union law, the jurisprudence of the European Court of Human Rights (ECtHR) dictates how satire should be legally identified:

Conceptualizing Satire

- **Definition:** In *Vereinigung Bildender Künstler v. Austria* (2007), the ECtHR formally defined satire as "a form of artistic expression and social commentary" that naturally uses "exaggeration and distortion of reality" to provoke and agitate.
- **High Bar for Readers:** In *Nikowitz v. Austria*, the Court rejected the idea that an "unfocused reader" might misinterpret satire, asserting that the average person is generally capable of grasping humorous or ironic commentary.
- **Politicians as Targets:** Public figures must tolerate a much higher degree of mockery, parody, and vivacity, especially during election campaigns (*Alves Da Silva v. Portugal*; *Yevstifeyev v. Russia*).

Where Restrictions are Permissible

The ECtHR allows the restriction of false or humorous statements under specific conditions:

- **Absence of Good Faith:** Restrictions are permissible if an actor fails to do due diligence and acts with a lack of good faith to actively damage reputations (*Staniszewski v. Poland*).
- **Hate Speech & Violence:** Satirical styling does not shield content that promotes discrimination, holocaust denial, or glorifies violence (*Sanchez v. France*; *Z.B. v. France*).

4. The Content Moderation Bottleneck

The paper highlights an operational disconnect between individual judicial review and systemic platform moderation:

Metric / Dimension	ECtHR Judicial Review	VLOP Content Moderation Systems
Operational Scale	Decides nuanced individual cases bounded in time and context.	Must process massive volumes of content under strict timelines.

Primary Metric	Heavily evaluates the intent and motive of the creator.	Evaluates systemic risk and reach (effects are easier to measure than intent).
Automation Feasibility	Exclusively human legal analysis.	Deeply automated (e.g., 52% of all VLOP moderation decisions in early 2025 were fully automated).

The Algorithmic Challenge

Humor, irony, and cultural jargon are notoriously difficult to program into automated machine-learning pipelines. Furthermore, political memes are primarily visual; because they rely on short, witty graphics rather than explicit text, they easily evade standard automated semantic checks.

5. Author's Conclusions and Policy Recommendations

- **Critique of Current Policies:** Categorically excluding satire and parody from definitions of disinformation within the DSA and the Code of Practice is **too simplistic**. It ignores how malicious actors weaponize humor to scale deception.
- **Prioritizing Harm over Intent:** Because discovering a creator's true psychological intent is highly impractical at scale, content moderation systems should evaluate the standard of **foreseeable societal harm and context** when assessing satirical disinformation.
- **The Necessity of Human Moderation:** VLOPs must allocate substantial resources toward human-in-the-loop systems. Human moderators remain significantly better equipped than AI to decode structural nuance, contextual shifts, and user perception.
- **Regulatory Clarification Needed:** Regulatory authorities must provide clear guidelines detailing how platforms can balance active mitigation of the "satire loophole" without triggering a chilling effect on legitimate democratic critique.